NATIONAL SOCIAL SECURITY AUTHORITY
versus
NITRAM (PVT) LTD

HIGH COURT OF ZIMBABWE
TAKUVA J
HARARE; 11 March 2026 and 21 July 2026

Urgent Chamber Application

N M Phiri with R Mugadza and Mr Chinhoyi, for the Applicant
J Ndomene with *J Manyoka*, *Mr Zihkalala* and *Mr Sibanda,* for the Respondent

TAKUVA J: The Applicant filed an Urgent Court Application for a Final Interdict restraining the Respondent from unlawfully occupying, dealing with or otherwise interfering with the Applicant's immovable property.

At a case management hearing on 13 March 2026 the court granted an order by consent on the following terms:

1. The Respondent to file opposing papers on or before 17 March 2026.
2. The Applicant to file its Answering Affidavit on or before 19 March 2026.
3. The matter be and is hereby postponed to 20 March 2026.

On 20 March 2026 the parties further agreed as follows;

1. The Applicant to file heads of argument on or before 23 March 2026.
2. The Respondent to file its heads of argument on 25 March 2026
3. Thereafter the court will prepare judgement without the need for oral submissions from the parties.

Subsequently both parties filed written heads of argument. It is clear from the submissions that the Respondent is opposed to the relief sought and raised two preliminary points, one that challenged the authority of the deponent to the Founding Affidavit and another that relates to the urgency of the matter. The argument in respect to the first point is that there is no Board Resolution attached authorising Charles Shava to act on behalf of the Applicant.

This point is without merit in that Charles Shava deposed to the Founding Affidavit by virtue of a resolution of the Applicant attached here to marked Annexure A1. At Law

what is required is that the deponent acts with the knowledge and approval of the litigant. In the result the challenge to the authority is therefore technical, opportunistic and is hereby dismissed.

As regards urgency, I take the view that urgency *in casu* arises from the continuing infringement of the Applicant's real rights of ownership. It is common cause that the Applicant holds registered title to the property in issue. Such registration confers real rights enforceable against the world at large. Therefore, the Applicant's rights are not merely contractual or discretionary they are real rights attaching to the property itself. The Respondent's occupation is ongoing, unlawful and continues to interfere with the Applicant's possession, use and development of the property. It is legally untearable to suggest that urgency is self-created. I find that the matter is urgent and the preliminary point is hereby dismissed.

On the merits the following issues fall for determination:

1. Whether the Applicant has established a clear right, grounded in its registered title and attendant real rights in respect of the property,
2. Whether the Respondent has demonstrated any lawful right or entitlement whether real or otherwise, capable of defeating or limiting the Applicant's rights of ownership?
3. Whether Respondent's conduct constitutes an actual or reasonably apprehended infringement of the Applicant's rights, including unlawful occupation, interference with development and purported dealings in the property.
4. Whether the Respondent's conduct, including its reliance on legally untenable grounds and resort to self help, warrants an award of costs on the legal practitioner and client scale.

A CLEAR RIGHT

The Applicant's entitlement to relief rests upon the existence of a clear right. In *casu* , the Applicant is the registered owner of the property as evidenced by Deed of Transfer No. 1857/92. It is trite that ownership of immovable property is acquired only upon registration and that registration confers a real right enforceable against the world at large; See *Takafuma* v *Takafuma* 1994 (2) ZLR 103 (s) at 105 H-106A.

Applicant's rights is a real right attaching to the property itself and enforceable against all persons. At its core such a right includes;

a) The right to possess the property;

b) The right to enjoy and use it

c) The right to develop it; and

d) The right to exclude all others from it.

Further Applicant has carried out the following developments;

(i) Obtained Subdivision Permits

(ii) Undertaken approved infrastructural works,

(iii) Secured Surveyor - General dispensation certificates;

(iv) Obtained local authority compliance certification; and

(v) Lawfully commenced the marketing and disposal of stands.

What is underscored here is not only that the Applicant is the legal owner, but also the lawful developer and Respondent's conduct interferes not only with ownership but with fully authorized and implemented development programme. Respondent seeks to resist the Applicant's rights by reliance on an alleged cession and purported rights traceable to a third party. A cession at its best gives rise to personal rights only. It does not transfer ownership, not does it create a real right in immovable property. See *CBZ Bank Ltd* v *David Moyo & Anor* SC-17-18 *JOSHUA MUZA TANGAWABAIWA* v *EDWARD TARUSENGA* SC 564-24

In my view, the Respondent's position is even more untenable than a misconceived reliance on cession. It does not allege that any cession was made in its favour. Instead, it seeks to rely on alleged rights traceable to a third party in whom on the Respondent's own case such rights would vest. What makes this position fatal is that a litigant cannot successfully resist a registered owner's claim by involving rights which are not vested in it, but vested in a third party and are, in any event merely personal and unregistered. The Respondent must place before the court a clear, coherent and legally recognizable basis for its entitlement. This the Respondent has failed to do in that it advances;

1. A cession it does not hold
2. Rights vested in a third party it previously sued; and
3. A position that shifts depending on convenience.

For these reasons, I find that the Respondent has failed to raise any *bona fide* or legally cognizable defence. In the result, the Applicant has discharged the requirement of establishing a clear right.

A REASONABLE APRREHENSION OF HARM

Apprehension of irreparable harm is harm or loss of property including incorporeal property and money in circumstances where its recovery is impossible or improbable. The

loss need not necessarily be any financial loss, it may consist of an irremediable breach of the applicant's rights- See INSAAF INVESTMENTS (PVT) LTD v CHARTRAIL ENT (PVT) LTD HH 297-23.

In the present matter, the confirmed occupation and unlawful dealings give rise to a reasonable apprehension- that the Respondent will persist in its unlawful activities; further encroachments will occur, additional unlawful sales maybe effected; and the Applicant will face a multiplicity of claims from third parties. I find accordingly that the Respondent's conduct constitutes an ongoing infringement of a real right of ownership, which by its nature requires immediate and direct protection.

ALTERNATIVE REMEDY

The question of the absence of an alternative remedy must be understood in the context of the remedy envisaged by law. For it to qualify, it must meet the following requirements;

(a) be adequate, having regard to the circumstances of the matter;
(b) be ordinary and reasonable;
(c) be a legal remedy;
(d) grant similar protection

See *EQUITY PROPERTIES (PVT) LTD* v *ALSHAMS GLOBAL (PVT) LTD & ANOR* SC-101-21

This threshold is met in the present matter in that the Respondent has unlawfully entered and occupied the Applicant's property, interfered with a lawful and approved development project; purported to market and sell land it does not own, advanced a defence that is legally untenable and internally inconsistent and relied on rights it does not hold and cannot enforce.

COSTS

Applicant seeks costs on the scale of legal practitioner and client. Such costs are warranted where a party's conduct is *malafide;* vexations; reckless; or constitutes an abuse of the court process. In *SVOVA & ORS* v *NATIONAL SOCIAL SECURITY AUTHORITY* SC-10-2016, the court stated that;

> "An award of costs is within the discretion of the court. In the exercise of its discretion the court is guided by certain principles and guidelines. One of the general principles is that the successful party is entitled to cost. See *MUDZIMU* v *MUNICIPALITY OF CHINHOYI& ANOR* 1986 (1) ZLR 12 (HC) AT 18C. In *casu* the court will also be guided by the principle

> that an award of cost at the legal practitioner and client scale is a drastic measure and one which should not be lightly resorted to except where the court is satisfied that there has been an attempt to abuse the process of the court or for some other good reason. See *P* v *C* 1978 ZLR 10 at 88A. There have to be exceptional circumstances to justify such an order. See *GWINYAYI* v *NYAGUWA* 1982 (1) ZLR 36 at 138 F"

In *casu*, what is significant is the Respondent's resort to self- help. Previously, the Respondent instituted litigation but elected to abandon them. Now, it has taken the law into its own hands and occupied the property without lawful entitlement and sought to assert rights outside the legal process. It is impermissible for a litigant to abandon lawful judicial process; decline to establish its rights before a competent court and there after seek the protection of the same court while persisting in unlawful conduct. In my view, this is a direct affront to the rule of law and constitutes a clear abuse of the court's process. Consequently, an award of cost on the legal practitioner client scale is necessary.

DISPOSITION

Applicant has established a clear right; an actual injury and an on going infringement of that right; a well grounded apprehension of further harm; and the absence of any alternative remedy. On the other hand, the Respondent has failed to raise any defence recognized at law. The matter is urgent and the requisites of a final interdict have been established.

In the result, it is ordered that

1. Respondent, NITRAM (Private) Limited trading as or also known as NITRAM PROPERTY HOLDINGS (Private) Ltd, together with all persons occupying or claiming or claiming occupation through or under it or acting on the authority, be and are hereby interdicted and restrained from unlawfully entering upon, occupying conducting any business activities upon or interfering with the Applicants rights in a certain piece of land situate in the District of Salisbury, known as Lot 2of GLAUDINA of Subdivision A of GILLINGHAM, measuring 162, 8073 hectares, belonging to the Applicant.
2. The Respondent whether acting by itself, its directors, employees, agents, representatives or any person claiming through or under it, be and is hereby interdicted and restrained from advertising, marketing, allocating, selling, offering for sale, property described in paragraph 1 above or any portion thereof.
3. The Respondent, whether acting by itself, its directors, employees; agents, representatives or any person claiming through or under it, be and is hereby interdicted from representing to members of the public in any manner whatsoever

that it holds any right, title, authority or interest in the property described in para 1 above or any portion thereof.

4. The Respondent is further interdicted and restrained from receiving, soliciting or accepting any monies, deposits or consideration from members of the public in respect of any stand or portion of the property described in para 1 above.
5. The Respondent and all persons claiming occupation through or under it be and are hereby ordered to vacate the said property forthwith.
6. In the event that the Respondent and all persons claiming occupation through or under if fail to vacate the property within 48hrs of service of this order by the Sheriff of Zimbabwe or his lawful deputy be and is hereby authorized and directed to evict the Respondent and all such persons from the property.
7. The Respondent and all persons claiming occupation through or under it be and are hereby ordered to remove all structures unlawfully erected on the property within seven (7) days of service of this order.
8. In the event that the Respondent fails to remove the said structures within the period specified above, the Sheriff of Zimbabwe or his lawful deputy be and is hereby authorized to cause the removal and/or demolition of such structures, with the costs thereof to be borne by the Respondent.
9. The Respondent together with all persons claiming occupation through or under it be and are hereby interdicted and restrained from re-entering or occupying the property after eviction.
10. The Officer Commanding Police for the area concerned, or such other member of the ZRP as may be designated, is hereby authorized and directed to render such assistance as maybe necessary to the Sheriff in the execution of this order and in maintaining peace and order during the eviction and removal of structures.
11. The Respondent shall pay the costs of this application on the attorney and client scale.

TAKUVA J:…….

Muvingi Mugadza, Applicant's Legal Practitioners
Maposa and Ndomene, Respondent's Legal Practitioners